

26STLC00593 26STLC00593

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC00593 Hearing Date: September 1, 2026 Dept: 26

Defendant Osiel Escobar's Motion for Order Setting Aside

Request for Entry of Default is granted. The default entered on 04/01/2026 is hereby vacated. Defendant is to file and serve the proposed Answer to the Complaint within 20 days of this ruling. Defense counsel Brian P. Smith is to pay Plaintiff's counsel \$750.00 within 20 days of this ruling.

Analysis:

On January

29, 2026, Plaintiff Deric Situ ("Plaintiff") filed this action against Defendant Osiel Escobar ("Defendant"). Following Defendant's failure to file a responsive pleading, Plaintiff filed a request for entry of default on April 1, 2026, which the Court entered the same day.

Defendant

filed a first Motion for Order Setting Aside Entry of Default on May 11, 2026, which the Court denied without prejudice on June 17, 2026. (Minute Order, 06/17/26.)

Defendant filed the instant Amended Motion for Order Setting Aside Entry of Default on July 17, 2026. Plaintiff filed an opposition on August 18, 2026 and Defendant replied on August 25, 2026.

Discussion

Defendant

moves to vacate the entry of default and default judgment pursuant to the mandatory provision of Code of Civil Procedure section 473, subdivision (b). Under this statute, an application for relief must be made within six months of default judgment and must be accompanied by an affidavit of fault attesting to the party or attorney's mistake, inadvertence, surprise

or neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) The Motion must also attach a copy of the moving party's response to the Complaint. (Code Civ. Proc., § 473, subd. (b).)

Defendant

timely filed and served the instant Motion three-and-a-half months after the entry of default and attached a copy of their proposed Answer to Complaint. (Motion, Smith Decl., Exh. A.) The Motion is also supported by a declaration of fault from defense counsel, who attests that they failed to seek an extension of time to respond to the Complaint before the responsive deadline expired. (Id. at ¶¶3-6.) Based on the neglect of Defendant's attorney as set forth in the supporting declaration, the Court must vacate the entry of default and allow Defendant to respond to the action.

Plaintiff

asks for an award of \$1,000.00 for expenses incurred with respect to the request for entry of default and the oppositions to the first and second Motions to Vacate. Code of Civil Procedure section 473 states in relevant part: "The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." (Code Civ. Proc., § 473, subd. (b).)

In

support of the request for sanctions, Plaintiff's counsel attests that he bills at \$350.00 per hour, and that he spent two hours to file and serve the Notice of Filing of Proof of Service, the Request for Entry of Default with the Court, to serve the Notice of Entry of Default, and to file the default judgment package. (Opp., Morris Decl., ¶10.) Plaintiff's counsel states that he spent an additional 2.5 hours preparing oppositions to Defendant's Motions for Relief. (Ibid.) If all of the time were claimed in sanctions, the amount would total \$1575; Plaintiff's counsel asks the Court to order \$1000, which correlates to approximately 2.85 hours' work.

The

Court will limit the award is limited to fees incurred in obtaining the default only, which is \$750 for two hours work. (See Rogalski v. Nabers Cadillac (1992) 11 Cal.App.4th 816, 822 (limiting compensatory fee award to the plaintiff's "attorney fees and costs incurred in obtaining the defaults only"). Plaintiff is awarded reasonable compensatory legal fees of \$750.00.

Conclusion

Defendant Osiel Escobar's Motion for Order Setting Aside

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Moving party to give notice.